



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-24-168 | 2113 Warren Avenue – Zoning Map Amendment
Date: October 14, 2024

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral October 14, 2024
- Public Services Committee October 22, 2024
- Second reading October 28, 2024
- Public Services Committee November 5, 2024
- Third and final reading November 12, 2024

Planning Commission Recommendation:

The Planning Commission heard this item at their October 7, 2024 meeting and recommended the Governing Body approve this application.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE ADDING THE URBAN USE OVERLAY DISTRICT TO LAND LOCATED NORTH OF EAST 21ST STREET AND EAST OF AND ADJACENT TO WARREN AVENUE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on October 7th, 2024, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as the South 33' Lots 3 and 4, Block 234, Original City, Cheyenne, Wyoming, hereby adds the Urban Use Overlay District.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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CITY OF CHEYENNE PLANNING COMMISSION

OCTOBER 7, 2024

STAFF REPORT

FILE: UDC-24-168: 2113 Warren Avenue – Zoning Map Amendment (zone change)

REQUEST: A request to add the UU Urban Use Overlay to the property.

LOCATION: 2113 Warren Avenue

APPLICANT: Elizabeth Valverde-Bartlett

AGENT: Elizabeth Valverde-Bartlett

OWNER: Sarah B.C. Bartlett

ZONING: MUR Mixed-use Residential

FUTURE LAND USE: Mixed-use Residential

PURPOSE: To allow a reduction in parking and allow for new uses on the property.

PREPARED BY: Connor White, Planner II



RECOMMENDED MOTION:

Move to **approve** the addition of the UU Urban Use Overlay zone to the South 33-feet Lots 3 & 4. Block 234, Original City as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes adding the UU Urban Use Overlay district to the parcel. This does not change the underlying zone of MUR Mixed-use Residential. The land currently has a single-family residence. The property is currently located within the Downtown Development Authority's district.

The applicant proposes to redevelop the site with a mix of different uses under one business. Due to site constraints, the ability to meet full requirements, including parking, is difficult at this location. The UU overlay allows for relaxation of design standards to promote the use of more urban properties. The most difficult design standard to meet is parking, and the UU overlay would make parking not required. The applicant could also seek a variance for this reduction. Although Staff does not typically encourage the expansion of the CBD zone, the applicant could have also sought that zoning district instead of the UU overlay.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Residential	MUR Mixed-use Residential	Single-family Residential
North	Mixed-use Residential	MUR Mixed-use Residential	Restaurant / Single-family Residential / Duplexes
South	Mixed-use Residential	MUR Mixed-use Residential	Offices / Single-family Residential
East	Mixed-use Residential	MUR Mixed-use Residential	Offices / Single-family Residential
West	Central Business District	CBD Central Business District	Offices / Single-family Residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, in an area with existing infrastructure.

PlanCheyenne encourages the conversion of homes along arterials and encourages neighborhood revitalization. The applicant plans to redevelop this property with multiple uses that would support the surrounding neighborhood.

The Future Land Use Designation for this property is Mixed-use Residential and the surrounding area is largely Mixed-use Residential or Central Business District. To the northwest there is some areas with the designation of Public. The Mixed-use Residential designation is primarily a mix of residential uses. When near more urban and commercial areas the uses begin to mix and retail, office and light trade are appropriate uses. These non-residential elements and other amenities are important to enhance the neighborhoods of the surrounding area and provide additional services.

It is also across the street from areas designated Central Business District. This designation encompasses Downtown Cheyenne and functions as the community's core business and civic area. Many of the buildings and features in the district reflect the City's historic roots, and preservation efforts have retained many historic assets. Because the CBD is largely developed, reinvestment and redevelopment are key areas of emphasis. This falls in line with what the applicant is proposing as it is reinvestment into an existing property within an established area.

Based on the policies and future land use map, the UU Overlay is appropriate at this location.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

The proposed addition of the UU Overlay is compatible with the surrounding area. The UU Overlay was written with this area of the community in mind and the whole area with the base zone of MUR could be considered for the overlay (see review criterion #5). The comprehensive plan supports infill development and redevelopment of sites. This UU Overlay would allow for the property to redevelop. The property to the north received nearly identical consideration and is zoned MUR, but was developed prior to the UU and had to receive relief to certain requirements that the overlay would permit. The block the property is on is part of the DDA district, demonstrating the appropriateness of applying regulations similar to those found in the urban core.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The UU Overlay would allow there to be no parking minimum, similar to the CBD zone. It does require bicycle parking to be provided and allows for the property to redevelop with commercial uses much easier than the MUR would allow on its own. Conversion of a residential property to commercial requires full compliance with the code, and would likely require multiple relief processes to successfully redevelop in the MUR zone.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The zone change is occurring in a pre-existing neighborhood. No changes to the street network are proposed. Accesses will not be changed with the zone change. Infrastructure (streets and utilities) exist in the area.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

According to UDC 5.6.9.a and b, the UU overlay district is intended for Urban and Infill Development. The UU district is intended to transition and step down from the urban core and other urban areas of Cheyenne into the surrounding neighborhoods. The UU overlay district is applicable to various lands envisioned for urban development. A base zone district of P, MUB, or MUR must be in place in order for the UU overlay to apply.

This property has a base zone of MUR and is adjacent to the urban core and within the DDA district. The downtown zone CBD exists across the street from the subject property. The property is requesting UU for redevelopment in an established urban area of the community.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The UU Overlay does not change the base zone of the property, but adds additional standards or reduces some of the requirements for the base zone. The overlay does make some specific uses prohibited and allowed. The uses specifically prohibited by the UU are already prohibited in the MUR, and the only newly-allowed use - Moderate Industrial – requires conditional use approval according to the UU. Any new proposed development would be able to meet the requirements of the overlay should the proposed development not happen.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

Planning Staff would like to note the following as general comments:

1. Staff does not believe this to be spot zoning for the following reason:
 - a. The “classic” definition of spot zoning is “the process of singling out a small parcel of land for a use classification totally different from that of the surrounding area for the benefit of the owner of such property and to the detriment of other owners.” [Anderson’s American Law of Zoning, 4th Edition, § 5.12 (1995)]. The uses are practically identical to the adjacent MUR, as it is still MUR (UU allows “Moderate Industrial” as a conditional use without MUR allowing it, but otherwise it’s identical)
 - b. The UU largely gives the land design standards which fall somewhere between “CBD” and “MUR” design standards – and the property is on the border between CBD and MUR.
 - c. The property immediately to the north received nearly identical consideration and is zoned MUR, it was just developed before the UU existed (therefore they had to receive relief from code requirements through alternative processes – instead of getting the UU zone).

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, review comments were received expressing the appropriateness of the UU Overlay at this location.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The UU Overlay is appropriate based on the future land use map, surrounding zoning, surrounding development patterns, and proposed development.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

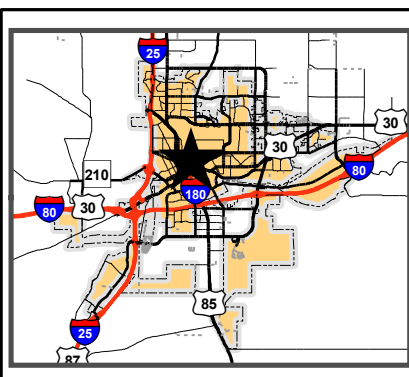
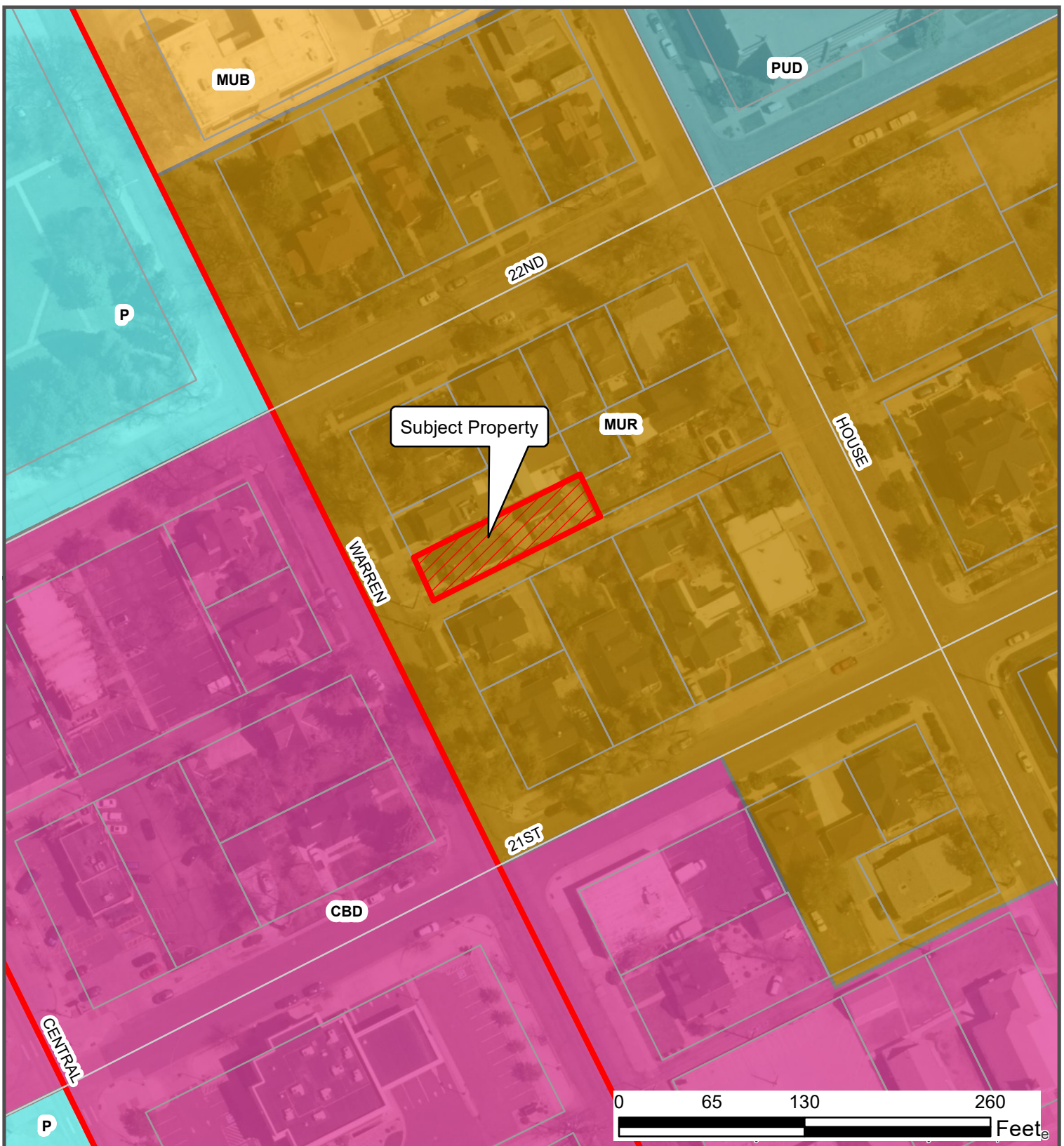
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the addition of the UU Overlay to the property located at 2113 Warren Avenue.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map

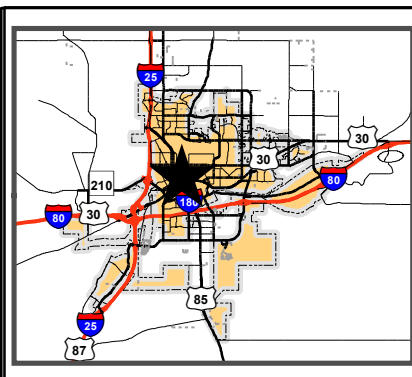
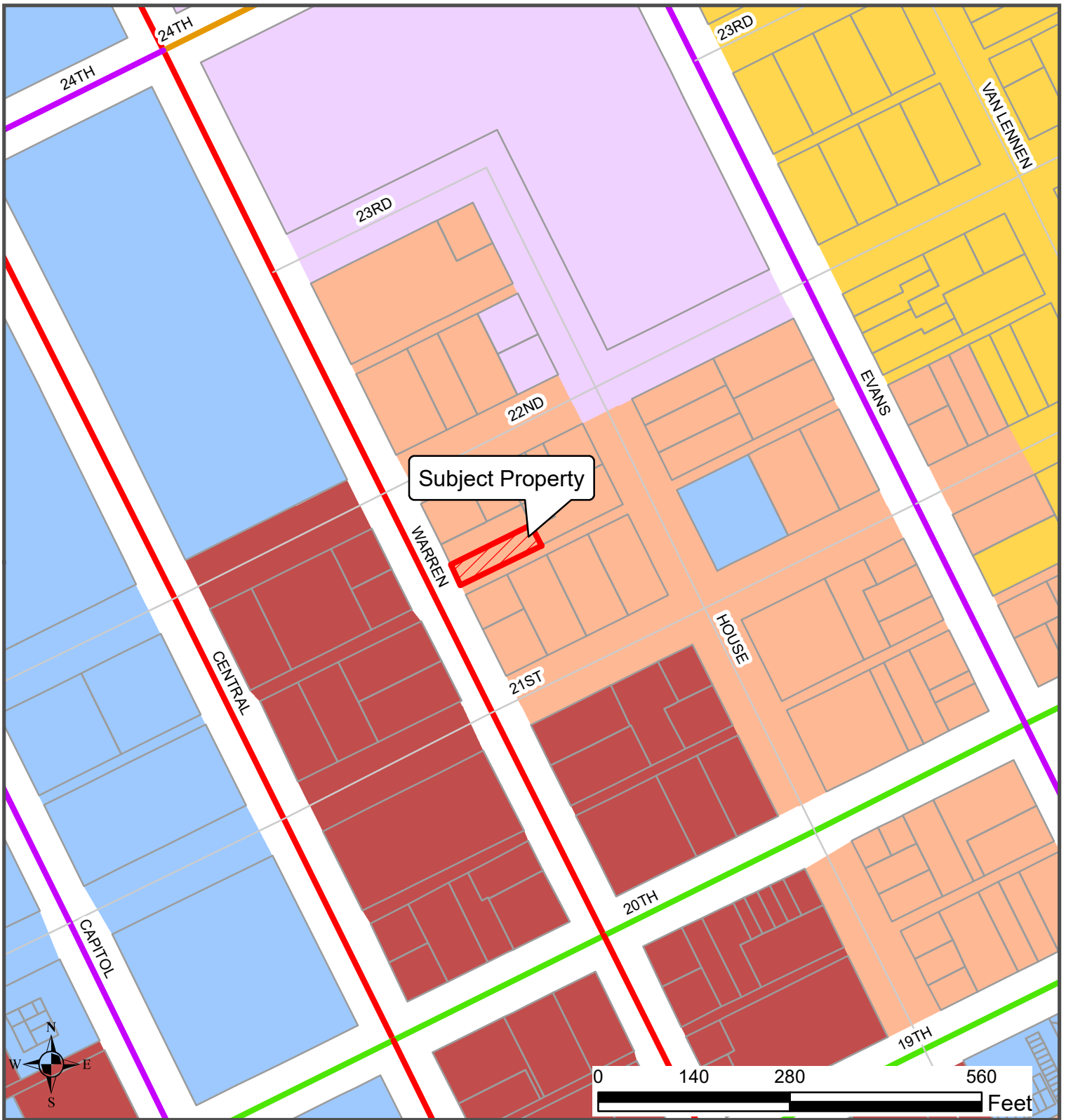


Attachment 1: Zoning Map PUDC-24-168

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map PUDC-24-168

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



September 26, 2024

PUDC-24-168
Zoning Map Amendment
Status: Active
Submitted On: 9/10/2024

Primary Location
2113 WARREN AVE
Cheyenne, WY 82001

Owner
Bartlett, Sarah
2113 WARREN AVE CHEYENNE,
WY 82001

Applicant
 Elizabeth Valverde-Bartlett
 308-765-5280 ext. 00000
 elizabeth@kreathink.com
 3522 Moore Ave.
Cheyenne, WY 82001

Application

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

Project Name* 

Presenzza

Proposed Zoning* 

Other

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*

☒

The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*

☒

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*



Elizabeth Valverde-Bartlett

Sep 9, 2024



PROJECT INFORMATION
LEGAL DESCRIPTION:
CHEYENNE: SOUTH 33' LOTS 3 & 4, BLOCK 234

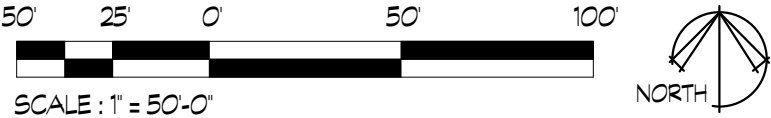
ADDRESS:
2113 WARREN AVENUE, CHEYENNE, WY

CURRENT ZONE:
MIXED-USE RESIDENTIAL (MUR)

CURRENT USE:
RESIDENTIAL

PROPOSED USE:
COMMERCIAL (RETAIL & SERVICE)

ZONING MAP
1" = 50'-0"



PRELIMINARY - NOT FOR CONSTRUCTION